

## 24NWCV04942 24NWCV04942

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-07-28

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Case Number: 24NWCV04942 Hearing Date: July 28, 2026 Dept: C

DIAZ vs KACHIKWU, M.D., et al..

CASE NO.:

24NWCV04942

HEARING: 7/28/26

@ 9:30 AM

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TENTATIVE

ORDER

Defendant Joseph Avitabile, P.A.'s Unopposed Motion for Summary Judgment is GRANTED.

Moving Party to give Notice.

Defendant Joseph Avitabile, P.A (Avitabile)

moves for summary judgment pursuant to CCP § 437c on the grounds that he complied with the standard of care and did not cause the injuries complained of in this case.

On July 8, 2026, Plaintiff KARENA DIAZ

(Plaintiff) filed a notice of non-opposition to Avitabile's motion for summary judgment.

BACKGROUND

This is a medical malpractice case. Plaintiff alleges that on or about June 16, 2023, at PIH Health Hospital-Whittier, Defendants performed a surgical procedure described as debridement of an abdominal wall abscess, lavage, and wound vacuum-assisted dressing placement. (Complaint, ¶ 7.) Plaintiff alleges that Defendants failed to perform the procedure in a manner that met the standard of care. Defendants placed Adaptic dressings in the base of the wound adjacent to prosthetic mesh, and left the dressings there. The dressings were intended for use as external wound coverings to manage exudate and protect healing tissues from direct contact with secondary dressings. They were not designed for internal use. (Complaint, ¶ 8.)

The retained dressings acted as a nidus for bacteria and a focus of infection, and, following the June 16, 2023, surgery, plaintiff continued to suffer from complaints of abdominal pain and infection, and from foul discharges of fluids. She was required to seek medical attention on numerous occasions. (Complaint, ¶ 9.) Plaintiff did not discover, and despite her exercise of reasonable care could not have discovered, her injury and the cause of her injury until May 17, 2024, when another abdominal surgery was performed and the surgeon found three Adaptic dressings had remained in the body without any therapeutic or diagnostic purpose or effect. (Complaint, ¶ 10.)

Based thereon, Plaintiff asserts a cause of action for: 1) Professional Negligence.

## LEGAL STANDARD

A party seeking summary judgment has the burden of producing evidentiary facts sufficient to entitle them to judgment as a matter of law. (CCP § 437c(c).) The moving party must make an affirmative showing that they are entitled to judgment irrespective of whether or not the opposing party files an opposition. (*Villa v. McFerren* (1995) 35 Cal.App.4th 733, 742743.) Thus, “the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519 (citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

When a plaintiff seeks summary judgment, they must

produce admissible evidence on each element of each cause of action on which judgment is sought. (CCP § 437c(p)(1).) When a defendant seeks summary judgment, they have the “burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (CCP § 437c(p)(2).)

The opposing party on a motion for summary judgment is under no evidentiary burden to produce rebuttal evidence until the moving party meets their initial movant's burden. (*Binder v. Aetna Life Insurance Company* (1999) 75 Cal.App.4th 832, 840.) Once the initial movant's burden is met, then the burden shifts to the opposing party to show, with admissible evidence, that there is a triable issue requiring the weighing procedures of trial. (CCP § 437c(p).) The opposing party may not simply rely on their allegations to show a triable issue but must present evidentiary facts that are substantial in nature and rise beyond mere speculation. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 162.) Summary judgment must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The duty owed by a medical provider is established by the standard of care followed by other medical providers in the same or similar community. “Expert evidence in a medical malpractice suit is conclusive as to the proof of the prevailing skill and learning in the locality and of the propriety of the particular conduct by the practitioner and in particular instances because such a standard and skill is not a matter of general knowledge and can only be supplied by expert testimony.” (*Willard v. Hagemeister* (1991) 121 Cal.App.3d 406, 412.) Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party's claim, the opposing party's burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 CA4th 1480, 1487.)

## DISCUSSION

“The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence

as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (Chakalis v. Elevator Solutions, Inc. (2012) 205 Cal.App.4th 1557, 1571.)

"The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony (citations), unless the conduct required by the particular circumstances is within the common knowledge of the layman." (Landeros v. Flood (1976) 17 Cal. 3d 399, 410.)

Avitabile moves for summary judgment on the grounds that no triable issue of material fact exists regarding whether the care and treatment provided by him met the standard of care. Additionally, no triable issue of material fact exists regarding whether an act or omission by him caused or contributed to Plaintiff's injury. In support of the motion, Avitabile evidences that he assisted Dr. Kachikwu with surgery on June 16, 2023.

The records confirm that Dr. Kachikwu made a surgical decision to place an Adaptic dressing under Plaintiff's wound vac and over her mesh. This piece of Adaptic was not missed during the count of materials at the end of surgery because Dr. Kachikwu clearly noted in her operative report that she intentionally placed the Adaptic in the wound base. The note indicates she intended it to stay there. (Cole, M.D., Decl., ¶ 27.)

Avitabile was not responsible for the surgical decision to place the Adaptic. (Cole Decl. ¶ 28.)

Dr. Kachikwu wrote clear orders that the wound vac and dressings should be changed every 3 days by the home health provider, Miracle Home Health. She ordered that a piece of Adaptic should be placed over the mesh and under the wound vac at every dressing change until the mesh was no longer visible. The records from Miracle Home Health confirm that they were or should have been aware that Dr. Kachikwu placed Adaptic under the

wound vac during her surgery and that they were to perform dressing changes every 3 days, including changing the Adaptic in Ms. Diaz's

wound. (Cole Decl. ¶ 2.)

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Avitabile did not see Ms. Diaz after surgery.

He did not perform any dressing changes. He merely acted as Dr. Kachikwu's assistant during the June 16, 2023 surgery. (Cole Decl. ¶ 30.)

The Court finds that Avitabile has met his initial burden of showing that no triable issue of material fact exists regarding whether Avitabile met the standard of care in his treatment of Plaintiff. Plaintiff's medical records demonstrate that Avitabile was there as an assistant to the surgeon, did not make any surgical decisions — including the one to place an Adaptic dressing, and was not responsible for removing the Adaptic dressing. (Cole Dec. ¶¶ 11-14, Exh. C.) Moreover, Dr. Cole has opined that Avitabile met the standard of care in his treatment of Plaintiff. (Cole Decl. ¶ 27.) Given the evidence demonstrating Avitabile met the standard of care in his treatment of Plaintiff, there is no negligent conduct that was a cause-in-fact of Plaintiff's injury. (*Bromme v. Pavitt* (1992) 5 Cal.App.4th 1487, 1502, 7 Cal.Rptr.2d 608.)

The burden therefore shifts to Plaintiff to demonstrate a triable issue of material fact exists, however, Plaintiff has filed a notice of non-opposition.

Accordingly, Avitabile's Motion for Summary Judgment is GRANTED.